

prior use stemmed from the opponent itself, it had provided only **sales records** to substantiate the prostheses' availability. In such circumstances, there were **serious doubts** that documents actually existed establishing the prostheses' availability to the public before the priority date. See also T.71/09, setting out the case law and citing T.750/94 and T.97/94. The respondent (opponent) alleged public prior use prejudicial to the novelty and inventive step of the subject-matter claimed. Here too, the prior use was its own: the evidence presented involved its company's sale of a certain product. The board held that the evidence submitted failed to establish the product's composition beyond any reasonable doubt.

In T.1776/14 the opponent stated that disclosure had been in its interest and implied that it was very likely the prior use had been public; in view of the circumstances, however, the board rejected its position and concluded that the balance of probabilities was not applicable because the two parties had not had equal access to the evidence.

In T.624/14, the analysis of the specific prior-use products, on which the determination of the content (internal structure) and hence the line of argument put forward by the appellant (opponent) relied entirely, had been performed by an employee of the appellant, and thus lay solely in the appellant's sphere. During the opposition proceedings, the respondent had voiced doubts about the credibility of the appellant's measurements and asked to be provided with the specific prior-use products used for the measurements in order to perform its own analysis. The opposition division had voiced similar doubts, stating that a simple visual inspection (e.g. during oral proceedings) would not suffice to determine the internal structure. It had then been up to the appellant to dispel these doubts by providing the samples. As the appellant had not provided these samples, there remained reasonable doubt as to the correctness and content of the analysis performed by its employee. The alleged prior use had thus not been proven beyond any reasonable doubt.

c) Miscellaneous – evaluation in the case law

In T.674/91 the board stated that all the assertions (affidavits or declarations) made by different witnesses of the alleged prior use and which were in agreement with one another already provided **sufficient evidence** of the commercial nature of the tests mentioned. An obligation of confidentiality could not have existed, since the access to the new tool was not restricted to a particular group of persons. The board concluded that the prior use was prior art within the meaning of Art. 54(2) EPC 1973.

The board in T.1682/09 held that evidence from an independent source corroborating an alleged prior use would have constituted strong evidence in support of the allegation, but the mere absence of such independent evidence was not a sufficient reason to dismiss it.

In T.1452/16 the alleged prior use concerned a product which was commercially available as agreed by all parties. It was thus possible for the patent proprietor to simply obtain samples and test them. Even if the present case did fall into the category of "balance of probabilities", the board did not merely form its opinion on the basis of whether the alleged facts were just slightly more likely to have occurred than not, but on the basis of whether it was convinced that they had occurred.

In **T.225/03** the opposition division had not taken evidence by hearing the witness before revoking the patent because it had considered the allegation of public prior use to be adequately proven by the documentary evidence. The board found that level of proof to be insufficient, and held that the respondent's (opponent's) request – that the **documentary evidence be complemented by hearing the witness** – had to be granted, as only the witness could confirm the links between the individual pieces of evidence and the circumstances of use as explained in his statutory declaration. It therefore sent the case back to the department of first instance for further prosecution.

In **T.441/04** the board agreed with the respondent (patent proprietor) that evidence in document form was normally preferable to witness testimony about long-ago events. But that did not mean that in the case in point such testimony was necessarily excluded per se or less convincing than documentary evidence. Applying the (high) standard of proof beyond doubt, the board considered that it had taken due account of the fact that the alleged public prior use – proven by witness testimony – was attributable to the appellant. The evidence submitted (mainly witness testimony) had measured up to that standard, and therefore no new or additional proof (such as drawings) was needed.

In **T.1914/08** the board – like the opposition division at first instance – regarded two witnesses' testimonies as the decisive evidence proving without any gaps the alleged prior public use. Each testimony, considered in isolation, gave a consistent and full picture of the process in question. Accordingly, it endorsed the opposition division's evaluation of the evidence, the standard of proof applied by it ("beyond all reasonable doubt") and the result of its analysis. It held, moreover, that the patent proprietor's (appellant's) request for additional evidence had to be refused. Since the opposition division had, in the course of its unfettered consideration of the evidence, concluded that the alleged prior public use had, essentially, been established by the two witnesses' testimonies and since the appellant had been unable to cast doubt on the probative value of those testimonies, there was no need for the opponent (respondent) to adduce further evidence in either the opposition or the appeal proceedings.

In **T.833/99** the opponent (appellant) had raised a novelty objection, claiming that prior use had occurred following public disclosure of an identical process: grooved-rail frogs for tramlines had been sold and installed in various German towns over a specified period. The opposition division had found this disclosure to be insufficiently proven, and had duly dismissed the objection. In support of its contention that the manufacturing process lacked novelty, the opponent relied on two photos (showing the grooved-rail frogs) measuring 6 cm by 6 cm and appearing inside a **prospectus**. The **photos were not clear enough** to say that the edges could not have been the result of flame-cutting. Lastly, during **invitations to tender**, the municipal employees had been required to observe confidentiality. The appellant said they might have breached that confidentiality, e.g. by informing repair workers of certain steps in the process, but **did not back this up with firm facts** such as dates, circumstances, etc., or with other evidence. Mere suppositions could not be entertained; they were not proof, and the onus was on the appellant to show that its **allegations were well founded** (**T.782/92**; **T.472/92**, OJ 1998, 161). Lastly, the board observed that there was no law to the effect that the confidentiality governing **tender procedures** ends when they do.

Features of subject-matter that was visible only briefly can be considered to have been made publicly available only if it can be shown beyond doubt that they were clearly and directly apparent to the skilled person for that short time (T 1410/14: train – test drive).

In T 2565/11 the invention concerned a method of operating a ventilator and air conditioner for vehicles. It was not contested that the trains which were the subject of a prior use allegation were indeed delivered to DB Regio AG and operated in a public manner. However, it was disputed that information concerning the ventilation and air conditioning system of those trains was published in the sense of Art. 54 EPC by the delivery and operation of the trains and further that the structure and operation of the ventilation and air conditioning system had been adequately proved by the opponent. In its decision the opposition division held that the alleged public prior use had not been proven beyond reasonable doubt. The board, in the case at hand, overturned the evaluation of evidence made by the department of first instance because the opposition division erred as regards the underlying facts and failed to give an evaluation that was free of contradictions. The board gave its own evaluation of the evidence regarding the relevant facts. Even applying a high standard of proof ("beyond any reasonable doubt"), the board found that the basic facts presented by the witness could not be questioned.

Decisions applying the boards' case law on the strict standard of proof – initially established for public prior use – to other matters include T 1107/12, on the accessibility of documents, and T 1201/14, on proof of the transfer of priority right.

See also chapter V.A.4.4.6.g) "Late-filed evidence of a public prior use – not admitted".

4.3.3 Posters and ephemeral presentations

Decision T 421/14 recalled that, according to the case law of the boards of appeal, the usual standard of proof was the overall balance of probabilities. The stricter standard of proof "beyond all reasonable doubt" had been used, exceptionally, in cases of public prior use where all the supporting evidence lay within the power and knowledge of the opponent. The issue of public prior presentation of posters or slides had, as a rule, been assessed in line with the requirements for public prior use. However, in the case of documents C30 (poster) and C31 (slide presentation), whose public availability was at issue in T 421/14, they were the patent proprietor's own documents.

In T 1210/05 the board concluded that the contested prior disclosure via the public display of a **poster** identical to document (1) at an Edinburgh congress had not been sufficiently established, i.e. beyond all reasonable doubt, based on the following considerations: the fact that the various means of evidence, namely the submitted documents, the affidavits of the witnesses as well as their oral testimony, did not contradict each other was not sufficient to meet the required standard of proof. Furthermore, the finding of the opposition division rested **exclusively on the testimony of one of the witnesses**. No independent evidence (in writing or by other persons) was available to support it. This did not mean that the written and oral testimony of the witness was per se insufficient. However, the board stated that there had to be good reasons for treating this evidence alone as having established the facts beyond any reasonable doubt. See also T 729/05, in which evidence

in support of disclosure of a poster was found to fall within the patent proprietor's sphere of influence.

In T 2338/13, which likewise concerned information disclosed on a **poster** displayed at a conference, the primary evidence of the alleged prior use (A3, a copy of a PowerPoint presentation) was in the possession of a witness who had been contacted by an **anonymous friend** referred to by the appellant (opponent) as a third party. The appellant was unable to specify how the witness, this third party and he were connected and the board held that he had to bear the consequences of this lack of information and that A3 thus had to be deemed to lie within his power and knowledge. The witness being likewise considered to fall within his sphere of influence, he also bore the burden of proving that A3's content had been made publicly available beyond any reasonable doubt. The board concluded that A3's content had indeed been disclosed in the form of a poster, but discrepancies between the witness's statutory declarations and his oral testimony cast doubt on the reliability of his evidence. The appellant not having proved his case beyond reasonable doubt, the board disregarded A3 when assessing patentability.

T 1057/09 concerned a "diploma thesis" whose content was allegedly disclosed inter alia during an oral presentation before the priority date of the patent in suit (ephemeral – beyond any reasonable doubt).

In T 1212/97 the opponent had submitted that the invention had been made available to the public at a lecture given some days before the priority date to an audience of some 100 to 200 persons. The question to resolve was whether there was any safe and satisfactory evidence regarding the content of what had been made available to the public at the lecture. The board did not consider **evidence from the lecturer alone** to be satisfactory evidence as to what had been made available to the public at the lecture. Even an audio or video tape recording made of the lecture, unless publicly available, would have to be treated with caution, if several hearings or viewings were necessary to extract all the information (see also T 428/13 and T 2003/08 of 31 October 2012 below).

In T 2003/08 of 31 October 2012 the board observed that, in contrast to a written document the contents of which are fixed and can be read again and again, an **oral presentation** is ephemeral. Therefore, the standard of proof for ascertaining the contents of an oral disclosure is high. T 1212/97 could not be interpreted as setting an absolute standard for the amount of evidence necessary to prove the contents of an oral disclosure. In the present case evidence from the lecturer and a member of the audience, provided by them in the form of both affidavits and oral testimony, was not considered by the board to prove beyond reasonable doubt that the subject-matter of the claim was disclosed during the lecture (see also T 12/01 about oral presentations; T 667/01 about declaration of the presenter as to the content of his oral presentation usually not sufficient and T 1057/09 about the alleged availability of a "diploma thesis" whose content was allegedly disclosed inter alia during an oral presentation before the priority date of the patent in suit).

Decision T 1212/97 was also cited in T 421/14, with the respondent (patent proprietor) arguing that both the poster C30 and slide presentation C31 involved "ephemeral" oral presentations, which meant that the standard of proof for ascertaining the content of the

oral disclosure had to be higher as per T.1212/97. The board in T.421/14 found this argument unconvincing, at least for the poster (printed and therefore fixed content), since T.1212/97 dealt with the alleged information content of an orally delivered lecture without a written complement in the form of a script, handout or later publication. The respondent's own statement left little room for doubt that C30 had been disclosed to the public; it was therefore down to it to show that this was not the case. The respondent did not provide any first-hand evidence, and its argument was speculative and not persuasive. On the overall balance of probability, the poster C30 was considered to form part of the prior art. The situation was different for the slide presentation C31; there was no evidence on file from which it could be inferred that C31 had been handed out in printed form at the conference, or that all of the slides had been shown to an audience (no evidence regarding the manner or speed of the oral presentation). Irrespective of the standard of proof applied, the content of C31 could not be considered to be prior art.

The board in T.843/15 held that a copy of a PowerPoint presentation could establish a presumption as to the presentation's content but was not enough on its own to guarantee that the content had been presented in full and, if so, comprehensibly. It was therefore generally necessary to submit further evidence such as affidavits or written notes from attendees or a handout distributed to the audience.

In decision T.335/15, it was concluded that the content of document E10.2 (PowerPoint presentation) had been made available to the public. The board held that, while T.843/15 dealt with issues similar to those in the case in hand, the circumstances had been different. The presenter here had confirmed that they had shown every page, which had not been the case in T.843/15. Moreover, the PowerPoint presentation at issue here related to rather simple technical subject-matter, and the content of the photographs presented was immediately clear. As to the likewise cited decision T.1553/06, the board found it was irrelevant because it related to online publications (whether a document with a specific URL had remained accessible for enough time) and not to a presentation to a professional audience. On the issue of evidence, the patent proprietor had raised various doubts about how the presentation had been given, but the board, noting that it could have filed additional evidence to support its assertions, held it was not enough merely to dispute the evidence already on file

In T.1625/17, having reviewed all the facts and evidence, the board was convinced that it had been proven beyond reasonable doubt that handouts of the presentation slides had been made available to the audience and thus to the public, as supported by the declaration (affidavit) of the presenter. The case was different from T.1212/97 and T.667/01, referred to by the parties, since those cases concerned the issue of ascertaining the contents of an oral presentation in the absence of a handout distributed to the audience.